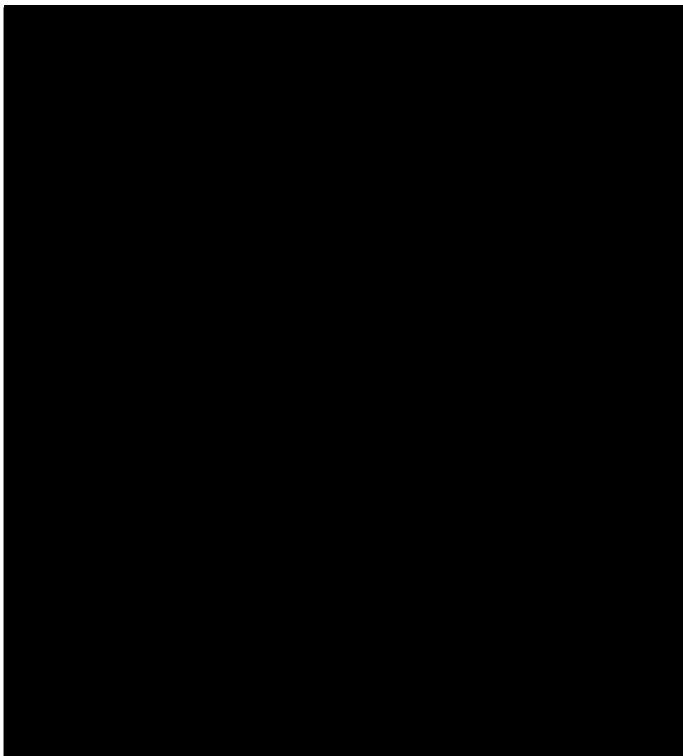


Justification Review Document
for Other than Full and Open Competition – FAR Part 13.501
(Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: The Regional Contracting Office-Alaska (RCO-AK) has a requirement from DPW to provide custodial services on Fort Wainwright, AK. The objective of this performance-based contract is to provide quality cleaning services that support the warfighter with flexible, efficient and cost-effective custodial service support. The Contractor shall provide all management and supervision, labor, equipment, supplies, materials, and transportation necessary to perform the required level of cleaning services that comprise the FWA Custodial Services at various buildings on FWA. The Government shall not exercise any supervision or control over the contractor performing these services herein. The services shall be performed to contract standards and specifications as well as all applicable laws and regulations.

Authority: 10 United States Code 3204(a)(2) as implemented in Federal Acquisition Regulation 6.302-2(a)(2) Unusual and compelling urgency and 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

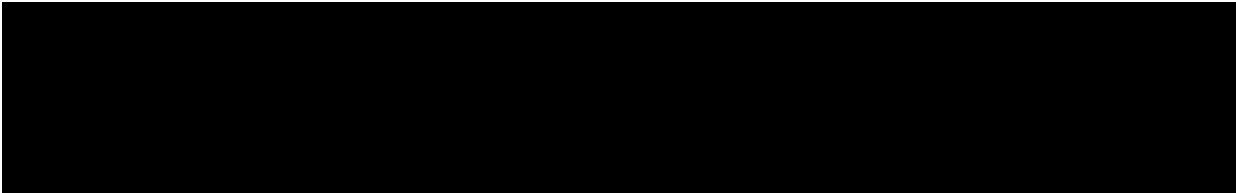
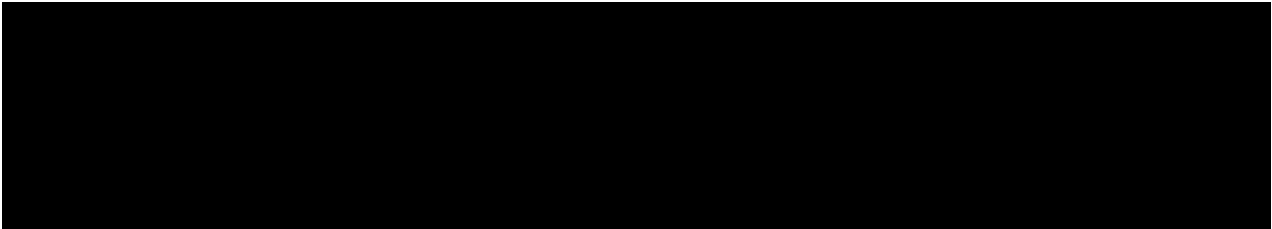
Amount: Estimated at \$1,679,369.72 for a 6-month bridge contract



(Source Selection information – See FAR 2.101 and 3.104-4)

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager**Legal Counsel****Command Advocate for Competition**

**Justification and Approval
for Other than Full and Open Competition – FAR Part 13.501**

1. **Contracting Activity:** 413th Regional Contracting Support Brigade
2. **Description of Action:** Approval for a Sole Source bridge contract for Custodial Services on Fort Wainwright, AK. On 4 March 2025, a follow-on contract for this requirement is pending award. The Government is seeking to award a Firm-Fixed Price (FFP) Indefinite Delivery/Indefinite Quantity (IDIQ) bridge contract to the incumbent contractor to avoid a break in service.
3. **Description of Supplies/Services:** The Regional Contracting Office-Alaska (RCO-AK) has a requirement from DPW to provide Custodial Services on Fort Wainwright, AK. The objective of this performance based contract is to provide quality cleaning services that support the warfighter with flexible, efficient and cost-effective custodial service support. The Contractor shall provide all management and supervision, labor, equipment, supplies, materials, and transportation necessary to perform the required level of cleaning services that comprise the FWA Custodial Services at various buildings on Fort Wainwright and at Range Control. The Government shall not exercise any supervision or control over the contractor performing these services herein. The services shall be performed to contract standards and specifications as well as all applicable laws and regulations.

Period of Performance (6 months): 5 March 2025 to 4 September 2025.

Value: \$1,679,369.72

4. **Authority Cited:** 10 United States Code 3204(a)(2) as implemented in Federal Acquisition Regulation 6.302-2(a)(2) Unusual and compelling urgency and 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedure for certain commercial items.
5. **Reason for Authority Cited:**
 - a. The current contract for Custodial Services on Fort Wainwright, Alaska expires 4 March 2025. The current contract has exercised all option years including the 52.217-8 extension. A follow-on contract for the requirement is pending award. While planning projected a timely award, unforeseen events during source selection necessitates an extension of services. Without the bridge contract there will be a break in service which will be detrimental to the Army and to operations on Fort Wainwright, Alaska. There will be both immediate and long-term impact on the mission.
 - b. A break in performance of the Fort Wainwright Custodial Services contract puts the life, health, and safety of the Fort Wainwright community at significant risk.

Moreover, an interruption in custodial services on Fort Wainwright will result in a severe degradation of the Army's ability to project power and train in the Arctic.

- c. There will be an immediate impact on Fort Wainwright, Alaska. Fort Wainwright will not have Custodial services ensuring that common areas, bathrooms, childcare/youth services facilities, fitness center, classrooms and dining facilities are regularly cleaned. Without these services, facilities can quickly become unsanitary, leading to health risks and injuries to the Fort Wainwright community consisting of approximately 22, 000 military, government civilian, accompanying family members, and contractor personnel.
- d. There will also be long term impacts on base facilities. In order to maintain basic functions on Fort Wainwright and preserve life, health and safety of the community, sanitary conditions must be maintained. The lack of custodial services would negatively affect the mission by degrading the overall morale and welfare of the entire Fort Wainwright community. The absence of proper cleaning services can negatively impact the overall quality of life and mental health, especially in a remote location such as the interior of Alaska. A lack of proper custodial services can negatively affect the image of the military installation, both internally among personnel and externally, to visitors and higher command. Cleanliness reflects discipline and professionalism, and its absence can suggest neglect and disorganization. Childcare and youth services, along with base fitness centers will be severely affected by the lack of custodial services, leading to health risks to the most vulnerable base population and degradation to military personnel physical fitness. If there were to be a break in custodial services, 79 Government facilities on Fort Wainwright would be adversely affected.
- e. Based on the above impact, the Agency determines the incumbent, Clean & Serene, LLC is the only contractor reasonably available to perform the bridge contract for the above services without an interruption. Executing a competitive temporary bridge contract to support this effort is not a possible course of action. A competitive award would take 6 to 10 months. The 6 to 10-month schedule includes the completion of a Contract Review Board (CRB), issue a solicitation, receive offers, conduct proposal review and source selection, and make an award.

There is not enough time to conduct competition for a new contract, allow for transit time for equipment, conduct contractor turnover and phase-in/out requirements, and allow for the new contractor to compile their personnel. Even sole sourcing a contract to another vendor would mean an interruption of services, based on time required to observe operations of the current contractor, obtain the necessary equipment and materials and mobilize, time required to arrange access to facilities, equipment, assets, systems etc., acquisition time, and time necessary to hire a fully qualified workforce, and integrate.

Given the imminent expiration of the incumbent contract, the gap in services associated with transitioning to a contractor other than the incumbent the Agency has decided to award this bridge contract to Clean & Serene, LLC so that it can continue to perform the critical services on an uninterrupted basis during completion of source selection. Under the circumstances here, Clean & Serene, LLC the incumbent contractor, is the only source that can provide the required services without delay or interruption.

6. Efforts to Obtain Competition:

- a. **Effective competition.** Due to the urgent and compelling nature of this requirement, this Custodial Services requirement will not be competed. 413th CSB, RCO-AK will issue a sole source firm-fixed price (FFP) contract to Clean & Serene, LLC. IAW FAR 5.202(a)(2), the Contracting Office need not submit the notice required by 5.201 to synopsize this action as the Contracting Officer has determined that the proposed contract action is made under the conditions described in 6.302-2 and the Government would be seriously injured if the agency complies with the time periods specified in 5.203. This contract will serve as a 6-month bridge contract between the current contract W912D0-20-D-0007 and the follow on W912D0-25-D-A001. The anticipated bridge contract will be awarded to the incumbent contractor.
- b. **Subcontracting Competition.** The current contract is awarded to a small business, and subcontractors will not be utilized.

7. Actions to Increase Competition: Based on the number of proposals received in response to the solicitation of the pending award, ample competition would exist if ample lead time was available for this bridge contract. The incumbent contractor is the only contractor identified to be able to support the required custodial services with a start date of 5 March 2025. Therefore, this specific bridge contract is being procured as a sole source.

8. Market Research: Market research was conducted from 15-21 May 2024. It was determined that Ability One was not a viable means of procurement because of the time frame needed to process a contract under Ability One, neither was it on the current Ability One Procurement list. Federal Supply Schedules and Federal Prison Industries could not support the magnitude of the requirement. Because of the wide range of services that are grouped together under NAICS 561720 it was determined that a Sources Sought would be posted on Sam.gov. The Sources Sought resulted in responses from 11 small businesses and 1 large business. There are no potential contract vehicles in place that may be employed to satisfy this requirement. The Government has limited leverage with this acquisition because of the geographic area, limited work force and labor bargaining units. The Government awarded a single award IDIQ firm-fixed-price contract. In contrast, attempting to competitively award a contract to any vendor other than Clean & Serene, LLC would result in an unacceptable break in

service. In circumstances of unusual and compelling urgency, the contracting officer may limit a procurement to only the firms the contracting officer reasonably believes can properly satisfy the requirement. In this case Clean & Serene, LLC, is the only firm the contracting officer reasonably believes can properly satisfy the requirement. Clean & Serene, LLC is the incumbent contractor, and they currently have the infrastructure to continue services on the current contract.

9. **Interested Sources:** To date, no other sources have written to express an interest to provide required custodial services with a start date of 5 March 2025.

10. **Procurement History:**

Contract number, awarded Contractor: W912D0-20-D-0007, Clean & Serene, LLC

Description of requirement: Custodial Services

Method of procurement: FAR Part 12 & FAR Part 15

Type of Set-Aside: Total Small Business Set-Aside

Contract type: FFP

Period of performance: 02 July 2020 – 4 September 2024 (FAR 52.217-8 can extend to 4 March 2025 for 6 month extension)

Total awarded amount: \$10,848,537.00

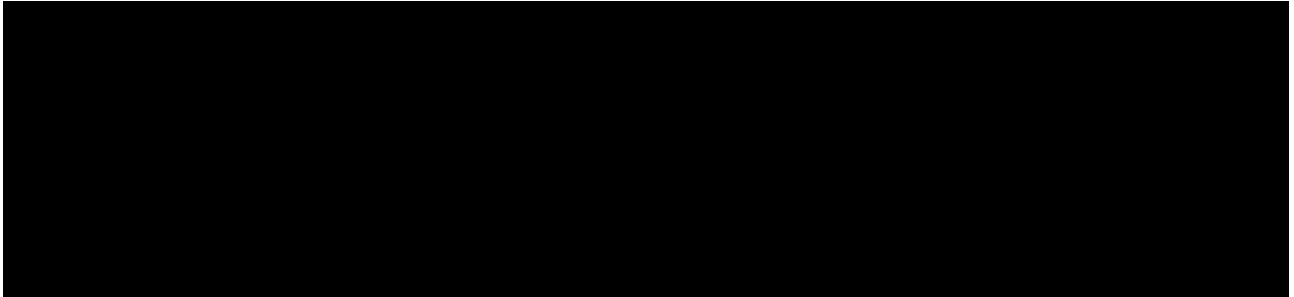
Number of option periods: Base plus 3 (plus an 6-month extension period)

Number of Offers: 7

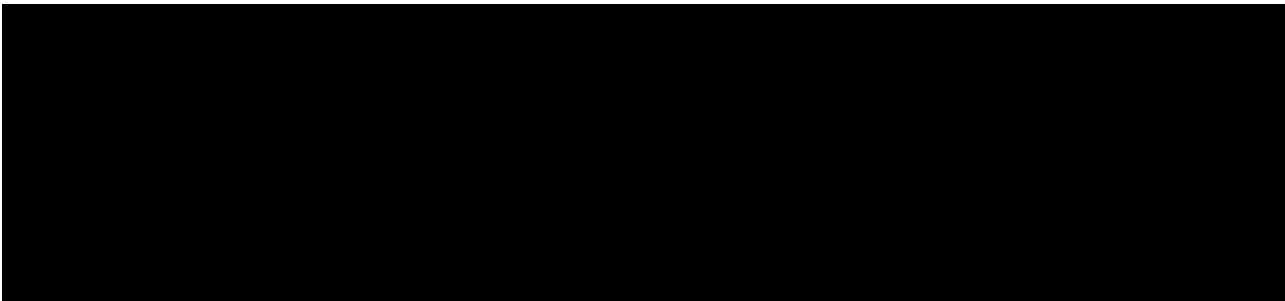
Source Selection Method: Trade-Off

Basis for fair and reasonable pricing: Competitive Proposals, comparison to IGCE, and previous contract pricing

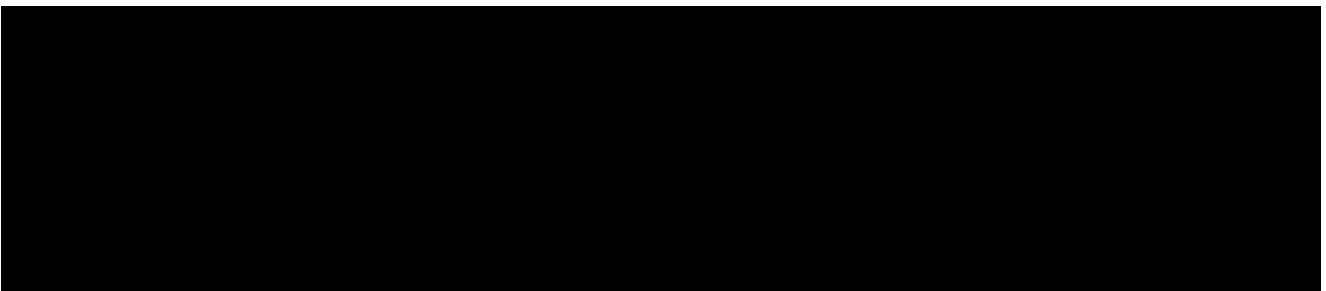
Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



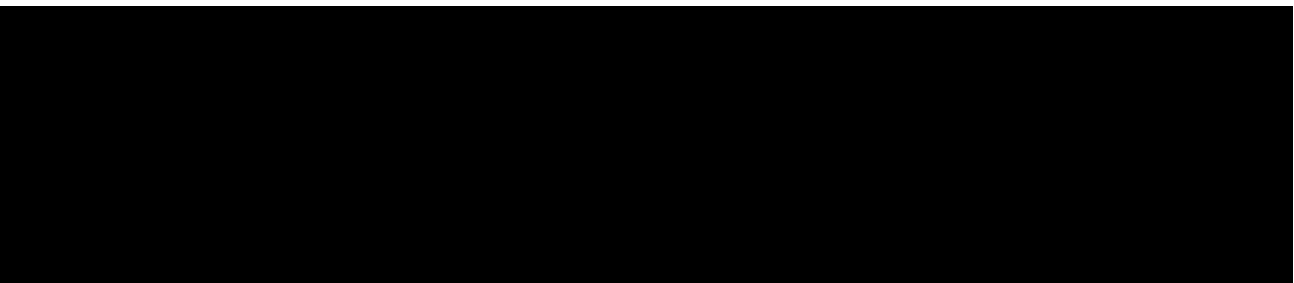
Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. The price fair and reasonable was determined based on a price analysis of historical pricing used on previous and current contract. Certified cost / pricing data is not required per FAR 15.403-1(b)(3).



Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.



Approval

Based on the foregoing justification, I hereby approve the procurement Custodial Services and (\$1,679,369.72) on an other than full and open competition basis pursuant to the authority of 10 United States Code 3204(a)(2) as implemented in Federal Acquisition Regulation 6.302-2(a)(2) Unusual and compelling urgency as modified pursuant to the authority of 41 United States Code 1901 as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

